

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
SHAMAH SHARIZE,

SUMMONS

Plaintiff,

Plaintiff designates Bronx County as
the place of trial.

- against -

The basis of venue is:
Location of incident.

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
STEPHON STEPHENS, ANTHONY MOODIE,
P.O. NICHOLAS TORRISI, P.O. JOSEPH FEGER,
LIEUTENANT GERARDO DECARO, CAPTAIN
LEE, and P.O.'s "JOHN DOE" 1 – 5 OTHER POLICE
OFFICERS WHOSE IDENTITIES
ARE IN THE SOLE POSSESSION OF THE
NEW YORK CITY POLICE DEPARTMENT,

DATE FILED: November 12, 2020

Plaintiff resides at:
71 Wakeman Avenue
North Newark, NJ 07104

Defendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your Answer, or, if the Complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys, within twenty days after the services of this Summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
November 12, 2020


GENTILE & ASSOCIATES

By: Laura Gentile

Attorneys for Plaintiff

401 Park Avenue South, Tenth Floor

New York, New York 10016

(212) 689-6009

To: THE CITY OF NEW YORK
NEW YORK CITY POLICE DEPARTMENT
P.O. NICHOLAS TORRISI
P.O. JOSEPH FEGER
LT. GERARDO DECARO
CAPTAIN LEE
100 Church Street
New York, NY 10016

STEPHON STEPHENS
650 East 234th Street
Bronx, NY 10466
or
225 Parkside Avenue, Apt. 6Q
Brooklyn, NY 11226

ANTHONY MOODIE

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
SHAMAH SHARIZE,

VERIFIED COMPLAINT

Plaintiff,

- against -

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
STEPHON STEPHENS, ANTHONY MOODIE,
P.O. NICHOLAS TORRISI, P.O. JOSEPH FEGER,
LIEUTENANT GERARDO DECARO, CAPTAIN
LEE, and P.O.'s "JOHN DOE" 1 – 5 OTHER POLICE
OFFICERS WHOSE IDENTITIES
ARE IN THE SOLE POSSESSION OF THE
NEW YORK CITY POLICE DEPARTMENT,

Defendants.

-----X

Plaintiff, **SHAMAH SHARIZE**, by his attorneys, **GENTILE & ASSOCIATES**, alleges,
upon information and belief, the following:

1. At the time of these events, Plaintiff, SHAMAH SHARIZE was a resident of Bronx County, City and State of New York.
2. The cause of action alleged herein arose in Bronx County, City and State of New York.
3. This action falls within one or more of the exemptions set forth in CPLR §1602.
4. At all times mentioned, the CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
5. At all times relevant herein, defendant the NEW YORK CITY POLICE DEPARTMENT was and still is a department of The City of New York.

6. On December 23, 2019, Plaintiff served a Notice of Claim in writing upon Defendant CITY OF NEW YORK, by delivering a copy thereof on line, which Notice of Claim advised Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, damages and injuries sustained so far as was then determinable.

7. At least thirty (30) days have elapsed since the service of the Notice of Claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

8. The 50-h hearing is scheduled for December 10, 2020

9. Upon information and belief, at all times mentioned, Defendants STEPHON STEPHENS, ANTHONY MOODIE, CAPTAIN LEE, P.O. NICHOLAS TORRISI, P.O. JOSEPH FEGER, LIEUTENANT GERARDO DECARO, and POLICE OFFICERS “JOHN DOE” 1-5 were and are employees of the Defendant CITY OF NEW YORK, employed by the New York City Police Department (“NYPD”) and at all times herein, were acting in such capacity as the agents, servants and employees of the Defendant, CITY OF NEW YORK and NYPD.

PRELIMINARY STATEMENT

10. On August 18, 2019, Plaintiff Shamah Sharize was falsely arrested by the NYPD, P.O. NICHOLAS TORRISI (“OFFICER TORRISI”) and P.O. JOSEPH FEGER (“OFFICER FEGER”), while under the supervision of LIEUTENANT GERARDO DECARO (“LT. DECARO”).

11. The false arrest stemmed from the fabricated allegations by NYPD civilian employee STEPHON STEPHENS (“STEPHENS”) and his friend ANTHONY MOODIE (“MOODIE”). STEPHENS was operating his vehicle at a high rate of speed in the early morning hours of August

18, 2019 on a residential street. As a result, STEPHENS violently rear-ended the vehicle driven by Plaintiff and occupied by members of Plaintiff's family.

12. After the police arrived, Stephens and Moodie falsely claimed that Plaintiff brandished a knife and chased them "a bunch of times" while trying to stab them.

13. Officer Torrisi, stated that upon hearing the allegation, he thought to himself "CHACHING," which is a term used in the NYPD to indicate overtime. Officer Torrisi's statements are recorded on his NYPD issued Body-Worn Camera (hereinafter referred to as "BWC"). Despite there being evidence disproving the false allegations, Officer Torrisi and Officer Feger arrested Plaintiff. The NYPD BWC footage, although it began subsequent to the crash, contains a record of the incident which shows that based on the events recorded, no reasonable police officer would believe that Plaintiff brandished a knife after Stephens rear-ended Plaintiff's vehicle. The claims made by Stephens could not have occurred. No reasonable police officer would believe these events had occurred. No reasonable police officer would have arrested plaintiff.

14. Defendants falsely arrested Plaintiff.

FACTS

15. On the evening of August 17, 2019, Plaintiff, his two young children, and his fiancé, attended a family gathering. The purpose of the family gathering was for Plaintiff and his fiancé to meet each other's family members before their anticipated wedding. At the conclusion of the gathering, Plaintiff drove his aunt, fiancé, and his two children home. It was now August 18, 2019. After dropping off his children at their mother's home, Plaintiff Shamah Sharize, began driving his aunt and fiancé home.

16. Moments later, at approximately 1:55 AM, on August 18, 2019, while stopped at a stop sign on East 226th Street at the intersection of Barnes Avenue in Bronx County, NYPD civilian employee Stephon Stephens, while operating his motor vehicle at a high rate of speed on a

residential street, violently rear-ended Plaintiff's 2019 Honda Civic, propelling Plaintiff's vehicle from one side of East 226th Street to the other side of East 226th Street.

17. Stephens claimed to the responding officers that the reason for crashing into the back of Plaintiff's vehicle while it was stopped at a stop sign, was that the NYPD employee had noticed issues with his vehicle's braking system for a few days, but he did not address it, and that he rear-ended Plaintiff's vehicle because his (Stephens') brakes failed him while driving down East 226th (between Bronxwood Avenue and Barnes Avenue), a long residential street.

18. Stephens does not provide any explanation as to why he may have been operating his vehicle at an apparent excessively high rate of speed, knowing he had brake issues in a residential neighborhood.

19. After the rear-end collision, Stephens and his friend Moodie, a passenger in Stephens' vehicle, called 911 separately. Moodie called 911 at 1:55:20 AM (with the call ending at 1:57:09 AM) and Stephens called 911 at 1:56:02 AM (with the call ending at 1:58:59 AM).

20. The audio recording of Moodie's 911 call at 1:55:20 AM, on the August summer night, revealed, he was not out of breath, nor was he excited on the call, and he never told the 911 Operator that Plaintiff allegedly menaced him with a knife, allegedly tried to stab both he and Stephens and/or allegedly chased them "a bunch of times."

21. To the contrary, Moodie calmly reports the collision and informs the 911 Operator that he is not hurt. Moodie's 911 call ended at 1:57:09 AM.

22. Just a few minutes later, he informed responding Officer Torrisi that he was injured in the accident.

23. In the audio recording of Stephens' 911 call at 1:56:02 AM, he too is composed, and never mentions to the 911 Operator any allegation that Plaintiff allegedly menaced him with a knife,

tried to stab both he and Moodie with a knife and/or chased them “a bunch of times.” Stephens’ 911 called ended at 1:58:59 AM.

24. Plaintiff has in his vehicle a service with Sirius XM, known as SiriusXM/Honda Link, which called him almost immediately after the rear-end collision. As a result, Plaintiff was on his phone with SiriusXM/Honda Link after the accident. SiriusXM/Honda Link which contacted 911 on behalf of Plaintiff, who remained on the phone with SiriusXM/Honda Link for the entire time until the police arrived.

25. On the NYPD Body-Worn Camera (“BWC”) footage of Officers Torrisi and Officer Feger, Plaintiff can be seen, still on the phone with SiriusXM/Honda Link after the officers arrived on the scene.

26. Plaintiff can be heard on the BWC footage, telling Sirius XM/Honda Link that the police are on the scene. On the audio recording of the 911 call by Sirius XM/Honda Link employee, the employee informed the 911 Operator that the “first party” (referring to Plaintiff) has informed them that the police are on the scene.

27. At 1:59:27 AM, which was approximately 28 seconds after Stephens’ ended his call with 911, Officers Torrisi and Feger arrived at the scene. Officer Torrisi would explain that he was around the corner when the call came over.

28. The BWC footage reveals that when the officers arrived at the scene, Stephens is calmly standing, with one hand in his pocket and the other holding his cell phone, apparently texting, viewing or scrolling through its contents.

29. On the warm August night, Stephens falsely told the responding officers, that just moments earlier, he was chased “a bunch of times” by Plaintiff, and falsely told the responding officers that Plaintiff tried to stab him, is seen on the BWC footage: He is not out of breath, he is

not sweating, and he does not appear to be distressed in any way. No reasonable police officer could conclude that the claims were possible.

30. Moodie had a conversation with Officer Torrisi, where Officer Torrisi would ask, “you said he [referring to Plaintiff, Mr. Sharize] had a knife?”

31. Neither Stephens nor Moodie ever informed the 911 Operator of any such allegation, despite having a full opportunity during their separate 911 calls immediately after the rear-end collision. At no time prior to this was there any such allegation made against Plaintiff. However, after the police arrived, they falsely claimed that Plaintiff possessed a knife.

32. To improperly and abusively deflect from NYPD civilian employee Stephens’ negligence in causing the violent rear-end collision, Moodie falsely alleged to Officer Torrisi that Plaintiff possessed a knife, menaced him (Moodie) with the knife, tried to stab both Stephens and him with the knife, and on the warm summer night, chased both Stephens and him “a bunch of times.” The BWC footage revealed that this was not credible or possible because neither Moodie, nor Stephens had anything resembling a trickle of sweat. Also, neither were out of breath nor excited, despite having been allegedly chased by Plaintiff Sharize, “a bunch of times,” who was allegedly armed with a knife and allegedly trying to stab them.

33. The NYPD BWC video footage reveals that as Moodie alleges to Officer Torrisi that Plaintiff displayed a knife, NYPD civilian employee Stephens, overhearing Moodie’s allegations, walked over to Moodie, and upon information and belief, questioned Moodie by asking “he had a knife?”

34. Stephens would later speak with Officer Torrisi and during that conversation, it would be determined that Stephens at the time worked with a police officer colleague of Officer Torrisi.

35. Additionally, at a later time during this incident, the NYPD BWC video footage shows NYPD civilian employee Stephens spoke with the 47th Precinct's Platoon Commander, Lt. Decaro. During that conversation, Stephens and Lt. Decaro shake hands, as each explained that they knew the other and previously worked together in another police precinct.

36. When Stephens was asked by Officer Torrisi to describe the knife that Plaintiff allegedly possessed, Stephens responded, "I don't know, ask my friend."

37. The NYPD BWC video footage reveals that neither Moodie nor Stephens could describe the alleged knife or its color to Officer Torrisi. Despite this, in NYPD records, Officer Torrisi falsely asserted that the alleged knife was black in color.

38. Moodie alleged that Plaintiff walked up to him, put gloves on and held a knife in his hand. But in addition to not being able to say what color the alleged knife was, neither Moodie nor Stephens, could describe the knife that Plaintiff allegedly menaced them with just a few moments earlier.

39. After neither Moodie nor Stephens could describe the knife that Plaintiff allegedly menaced them with, Officer Torrisi removed his own knife and opens it by apparently flipping it open, to demonstrate to Moodie and Stephens, a possible type of knife that Plaintiff allegedly possessed. Upon observing Officer Torrisi open his own knife, Stephens would respond by stating something to effect of "Yeah, something like that." Stephens could not describe the knife further and informed Officer Torrisi to "ask my friend [referring to Moodie], he saw it."

40. The NYPD BWC video footage revealed that after observing Officer Torrisi open his own knife, Moodie, who had initially claimed that Plaintiff walked up to him *holding* a knife, then changed his account of the alleged incident and now falsely asserted that Plaintiff walked up to him and *flipped open* the alleged knife in the *exact* manner that Officer Torrisi flipped open his own knife.

41. Officer Torrisi searched the person and vehicle of Plaintiff to find the alleged knife that neither Moodie, nor Stephens could describe and found nothing.

42. Unable to find any knife, Officer Torrisi then asked Moodie and Stephens (after Moodie and Stephens had already repeatedly falsely claimed that Plaintiff menaced and tried to stab them with a knife), whether Plaintiff menaced them with a hammer instead of a knife. Stephens does not immediately respond. Instead, Moodie responds by stating “a knife,” and then one second after Moodie’s response, Stephens also says “knife.”

43. Plaintiff was a construction company supervisor and had his tools in his vehicle. Upon information and belief, Officer Torrisi, while searching Plaintiff’s vehicle, saw Plaintiff’s tools, including a hammer, and since he did not locate a knife, he conspired with Stephens and Moodie, suggested a new false narrative, layering additional falsehoods on their already incredible allegations.

44. Officer Torrisi searched Plaintiff’s body, and also searched his vehicle more than once. However, a knife was never recovered, prompting one unidentified police officer in the NYPD BWC video footage, who responded to assist with the transport of Plaintiff to the 47th Precinct, to question Officer Torrisi as to where the alleged knife was.

45. Had either Moodie or Stephens agreed with Officer Torrisi that Plaintiff allegedly menaced them with a hammer instead of a knife, Officer Torrisi would then have access to the “evidence” of the hammer, since he lacked any evidence of the existence of an alleged knife.

46. At approximately 2:34 AM, on Officer Torrisi’s NYPC BWC footage, he explains that upon arriving at the scene, which the BWC footage reveals was at 1:59:27 AM, he is informed by Moodie, that Plaintiff allegedly possessed a knife.

47. In the BWC video recording, Officer Torrisi further explained that upon hearing this allegation from Moodie, he said to himself “**CHA CHING.**”

48. The term “CHA CHING” (sounding like coins falling to the ground) is used within the NYPD to indicate money, specifically overtime.

49. The NYPD BWC footage revealed that without even interviewing Plaintiff or any other persons present at the scene, or without finding the alleged knife, or without reviewing all of the facts (which would have revealed that Plaintiff could not have engaged in the acts alleged), or without reviewing the video from a surveillance camera on a building (3994 Barnes Avenue, Bronx NY) at the scene, Officer Torrisi determined to improperly engage in falsehoods, abuse of process and other torts, and enter a civil conspiracy with co-defendants so that he could earn overtime by arresting Plaintiff.

50. Officer Torrisi (already determined on arresting Plaintiff to earn overtime) and Officer Feger walked over to the other side of the intersection to meet Plaintiff for the first time. The NYPD BWC video footage revealed that when the officers approached Plaintiff, he was still on his cellular phone with SiriusXM/Honda Link, who had called him after an automatic notification was made to them that his vehicle was involved in an accident. It is for this reason that Plaintiff never called 911, because Sirius XM/Honda Link called him before he could do so and he was relaying the information to them, as they relayed the crash information to the 911 Operator.

51. The NYPD’s Intergraph Computer Aided Dispatch System report revealed that Sirius XM/Honda Link made the 911 call on behalf of Plaintiff at 1:56 AM, which was 2 seconds before Stephens made his call to 911.

52. Plaintiff can be observed on the NYPD BWC video footage when the officers approached him. Plaintiff, who was a smoker, was not out breath, nor sweating on the warm August night, but the officers arrested Plaintiff, based on the obviously false allegation that, just moments prior, Plaintiff chased two men “a bunch of times,” while allegedly brandishing a knife. Defendants

falsely arrested Plaintiff, despite clear evidence in front of them that contradicted the false allegations.

53. Instead of being out of breath, or sweating or acting nervously as a result of the presence of the police, Plaintiff is observed on the NYPD BWC footage, exhibiting signs of distress at the crash that occurred and he is focused on the physical condition of his fiancé, who was not moving or otherwise responsive after the violent rear-end collision. His fiancée received no attention from defendants who had arrived to assist the crash victims.

54. The NYPD BWC footage reveals Officer Torrisi walked back over to Stephens and Moodie, who were together, and told them that although he (Officer Torrisi) knew that Plaintiff, was the alleged perpetrator, he (Officer Torrisi), needed them to identify Plaintiff as the perpetrator to him (Officer Torrisi) for court purposes. The NYPD BWC footage show Stephens and Moodie voluntarily comply with Officer Torrisi's suggestions and/or instructions.

55. At approximately 2:39 AM, on August 18, 2019, true to his illegitimate intent to acquire overtime pay, Officer Torrisi, without taking into account the timing of the 911 calls, which Defendants currently possess, the lack of any mention of the allegations against Plaintiff in the 911 calls, without taking into account the calm nature of Stephens and Moodie, who were allegedly just chased "a bunch of times," allegedly by a knife wielding Plaintiff, without reviewing potential video surveillance footage from a surveillance camera affixed to the building located at the corner of 226th Street and Barnes Avenue (3994 Barnes Avenue, Bronx NY), without interviewing Plaintiff's fiancé and aunt as to what transpired, and without interviewing several other individuals at the scene, did, under the supervision of Lt. Decaro, falsely arrest Plaintiff.

56. Plaintiff had previously informed the officers that he was injured as result of the violent rear-end collision. On the BWC footage, Officer Feger is heard telling Officer Torrisi that they will need another "Bus" (NYPD term for ambulance) to the location for Plaintiff. Despite

Plaintiff's complaint of an injury and Officer Feger's advice on requesting another ambulance to treat Plaintiff, the NYPD BWC footage reveals that Officer Torrisi never requested another ambulance to the scene to treat Plaintiff.

57. Defendants are in possession of the audio recordings of all three (3) of the 911 calls made in regard to this matter. Those 911 calls reveal that Plaintiff's actions are accounted for *during* the 911 calls. He is on the phone with SiriusXM/Honda Link. Additionally, those 911 calls reveal neither Moodie nor Stephens are being chased "a bunch of times" during *their* 911 calls. Therefore, those 911 calls reveal that Plaintiff could not have engaged in any of the alleged actions against Moodie or Stephens, during the 911 calls.

58. Those 911 calls reveal that all of Plaintiff's actions from the time of the crash until the time of the arrival of the police officers are accounted for, because Plaintiff is on the phone with SiriusXM/Honda Link during the entire 28 seconds between the end of Defendant Stephens' 911 call and the arrival of the police. Therefore, those 911 calls reveal that Plaintiff could not have engaged in any of the alleged actions against Moodie or Stephens, after the 911 calls.

59. The lack of any claims against Plaintiff during the 911 calls, made separately by Moodie and Stephens, revealed that he did not engage in any of the alleged actions *prior* to those 911 calls. Therefore, it is not possible that Plaintiff engaged in any of the alleged actions against Moodie or Stephens, prior to the 911 calls.

60. Stephens and Moodie had improper and illegitimate motive to make the false allegations against Plaintiff - because Stephens was likely driving at an excessively high rate of speed at 1:55 AM and violently rear-ended Plaintiff's vehicle, which resulted in injuries. Stephens, Moodie, and defendant police officers successfully but improperly and illegitimately shifted the attention from Stephens' reckless actions to the fabricated claims of menacing and attempted assault, against Plaintiff.

61. Officer Torrisi, looking forward to acquiring improper overtime pay by arresting Plaintiff, ignored facts that would reveal that Moodie and Stephens were lying and suggested new and better falsehoods to falsely implicate Plaintiff.

62. Officer Torrisi's illegitimate quest for overtime pay ("*CHA CHING*") led him to assist and conspire in the fabrication of a false and unbelievable story initiated by Stephens and Moodie.

63. Officer Torrisi's NYPD issued Activity Log indicated that Officer Torrisi was successful in acquiring almost eight (8) hours of overtime pay as a result of falsely arresting Plaintiff.

64. Defendants thereafter failed to disclose to the Bronx District Attorney's Office, all relevant records in this matter.

65. As a result of the foregoing improper, illegitimate and malicious acts, plaintiff was falsely arrested, indicted, and maliciously prosecuted.

66. Upon information and belief, Defendant Stephens is currently under investigation by the NYPD's Support Services Bureau's Investigations Unit for Falsely Reporting an Incident. The investigator assigned to the matter is NYPD Sergeant William Gattis.

67. The defendant police officers and civilian employees were at all material times acting within the scope of their employment, and as such, the defendant CITY OF NEW YORK is vicariously liable for the defendant officers' and Stephens' acts described above.

68. No negligence on the part of the plaintiff contributed to the occurrence alleged herein in any manner whatsoever.

**FIRST CAUSE OF ACTION:
ASSAULT AND BATTERY**

69. On August 18, 2019 at or about 2:39 AM in the vicinity of East 226th Street at the intersection of Barnes Avenue, Bronx, New York, defendants, jointly and severally in their capacity as police officers wrongfully touched, grabbed, and seized the plaintiff Mr. Shamah Sharize, in an

excessive manner about his person, causing him physical pain and mental suffering. At no time did the defendants have legal cause to grab, seize, or touch the plaintiff, nor did the plaintiff consent to this illegal touching, nor was it privileged by law.

70. As a result of the aforementioned occurrence, plaintiff was caused to sustain serious personal injuries and to have suffered shock, pain, public humiliation, defamation, and severe emotional distress and mental anguish; and, upon information and belief, all of plaintiff's injuries and their effects will be permanent; and as a result of said injuries, plaintiff has been and will continue to be obliged to incur expenses for medical care and attention; and plaintiff has been and will continue to be rendered unable to perform plaintiff's normal activities and has sustained a resultant loss therefrom.

71. Plaintiff hereby demands compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

**SECOND CAUSE OF ACTION:
VIOLATION OF PLAINTIFF'S CONSTITUTIONAL RIGHTS
42 U.S.C. SECTION 1983**

72. Plaintiff repeats and re-alleges all the allegations contained in all preceding paragraphs of this complaint with full force and effect as though set forth at length herein.

73. On August 18, 2019 at or about 2:39 AM in the vicinity of East 226th Street at the intersection of Barnes Avenue, Bronx, New York, defendants, acting under color of state law, searched the plaintiff without his consent and without probable cause or reasonable suspicion and without any valid warrant, order or legal process, seized and falsely arrested and detained him, and maliciously prosecuted him, thereby depriving plaintiff of his right to be free from unreasonable search and seizure as required by the Fourth and Fourteenth Amendments, therefore, defendants are

liable under 42 U.S.C. Section 1983 which prohibits deprivation under color of state law, of rights secured under the United States Constitution.

74. On or about August 18, 2019, plaintiff was unlawfully assaulted, battered, detained, arrested, maliciously prosecuted and deprived of his constitutional rights, in violation of and actionable under 42 U.S.C. § 1983.

75. As a result of the aforementioned occurrence, plaintiff was caused to sustain serious personal injuries and to have suffered shock, pain, public humiliation, defamation, and severe emotional distress and mental anguish; and, upon information and belief, all of plaintiff's injuries and their effects will be permanent; and as a result of said injuries, plaintiff has been and will continue to be obliged to incur expenses for medical care and attention; and plaintiff has been and will continue to be rendered unable to perform plaintiff's normal activities and has sustained a resultant loss therefrom.

76. Plaintiff hereby demands compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

**THIRD CAUSE OF ACTION:
MONELL ACTION**

77. Plaintiff repeats and re-alleges all the allegations contained in all preceding paragraphs of this complaint with full force and effect as though set forth at length herein.

78. This cause of action is brought pursuant to 42 U.S.C. § 1983 for violations of the Fourth and Fourteenth Amendments to the United States Constitution. It applies to the City of New York and police officers and civilian employees sued in their official capacity and should be characterized as a "Monell" claim).

79. Defendants City of New York has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest and/or search of individuals warrant, especially with respect to the principle and policy that the arrest should be based on probable cause.

80. The City of New York was negligent and/or deliberately indifferent by failing to implement a policy with its police department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest, seize and or search individuals such as the Plaintiff here where probable cause is lacking.

81. The City of New York is negligent or has acted with deliberate indifference due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking: Probable cause must be present before an individual such as plaintiff can be seized and searched.

82. The City of New York is negligent or has acted with deliberate indifference due to its failure to implement a policy with its Police Department that prohibits and punishes Police Officers for manufacturing false evidence against criminal defendants.

83. The foregoing acts, omissions and systemic failures are customs and policies of the City of New York which caused the police officers to falsely arrest, illegally seize and search, maliciously prosecute, suborn false testimony against Plaintiff, under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

84. The defendant's deliberate indifference is further evident by and through the lack of meaningful investigation and punishment of transgressors. Upon information and belief, the NYPD Internal Affairs Bureau investigations rarely lead to administrative trials, and when they do, and the charges are somehow sustained, the punishment is minimal, thereby lacking any deterrent effect.

85. There is a pervasive pattern, custom and de facto policy of the City of New York to allow its police officers to violate the constitutional rights of citizens, as reported in the New York Daily News expose of Sunday May 19, 2013 where the Daily News reported a litany of unconstitutional actions taken by the NYPD teams of police officers that have been the subject of lawsuits and departmental hearings but resulted in virtually no reprimands to the offending officers, rather, one officer was promoted to a Lieutenant even when his actions were known to be unconstitutional.

86. The defendants subjected the plaintiff to these deprivations, either in a malicious or reckless disregard of the plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments to the United States Constitution.

87. The direct and proximate result of the Defendant's acts are that the plaintiff was falsely arrested and has suffered permanent injuries of a physical and psychological nature, was forced to endure pain and suffering, all to his detriment.

88. Plaintiff hereby demands compensatory and punitive damages against City of New York in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

**FOURTH CAUSE OF ACTION:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

89. Plaintiff repeats and re-alleges all the allegations contained in all preceding paragraphs of this complaint with full force and effect as though set forth at length herein.

90. The acts complained of were extreme, outrageous, intolerable, and beyond the bounds of a civilized society.

91. The acts complained of were extreme, outrageous, intolerable, and beyond the bounds of decency tolerated in this society.

92. The actions and omissions of the defendants were intentionally designed to cause plaintiff severe emotional distress or were taken with reckless disregard of the significant probability of causing plaintiff severe emotional distress.

93. As a result of the foregoing, plaintiff was caused to sustain serious injuries suffered injury in that his reputation was damaged; his good name was damaged; he has suffered shame, depression, embarrassment, mental strain, mental anguish, mental distress, and humiliation; and as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for medical care; and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

94. Plaintiff hereby demands compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

**FIFTH CAUSE OF ACTION:
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

95. Plaintiff repeats and re-alleges all the allegations contained in all preceding paragraphs of this complaint with full force and effect as though set forth at length herein.

96. The acts complained of were extreme, outrageous, intolerable, and beyond the bounds of a civilized society.

97. The acts complained of were extreme, outrageous, intolerable, and beyond the bounds of decency tolerated in this society.

98. Defendants had a duty of reasonable care to plaintiff.

99. Defendants breached their duty to plaintiff.

100. Defendants knew or should have known that their conduct would cause extreme emotional distress to plaintiff.

101. Defendants continued to violate plaintiff's rights despite their knowledge that their conduct caused and was causing extreme emotional distress.

102. Defendants negligently caused plaintiff to suffer from extreme emotional distress.

103. As a result of the foregoing, plaintiff was caused to sustain serious injuries suffered injury in that his reputation was damaged; his good name was damaged; he has suffered shame, depression, embarrassment, mental strain, mental anguish, mental distress, and humiliation; and as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for medical care; and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

104. Plaintiff hereby demands compensatory against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

**SIXTH CAUSE OF ACTION:
ABUSE OF PROCESS**

105. Plaintiff repeats and re-alleges all the allegations contained in all preceding paragraphs of this complaint with full force and effect as though set forth at length herein.

106. As a result of defendants' wrongful acts, plaintiff was arrested, arraigned, indicted and prosecuted.

107. Defendants were not motivated by any legitimate purpose, but by the wrongful purpose of evading the consequences of the negligent causing of the motor vehicle accident and the wrongful purpose of acquiring excess overtime pay.

108. The acts sought to obtain an illegitimate collateral advantage.

109. Defendants abused their positions as employees of the New York City Police Department and violated the public trust.

110. The wrongful acts and illegitimate purposes represent an abuse of process.

111. The wrongful acts and illegitimate purposes were unlawful interferences with plaintiff's person and/or property.

112. Defendants improperly and falsely arrested, detained, indicted and prosecuted plaintiff and improperly continued to use process against plaintiff.

113. The wrongful acts and illegitimate purposes represent an abuse of process committed with malice and/or an attempt to do harm without excuse or justification.

114. The wrongful acts and illegitimate purposes of the use of process was in a perverted manner to obtain a collateral objective.

115. The wrongful acts and illegitimate purposes of the use of process resulted in a violation of a federal and/or state constitutional or statutory law.

116. These wrongful acts and illegitimate purposes caused plaintiff to suffer severe and permanent harms and special damages, outside the legitimate ends of the process.

117. As a result of the foregoing, plaintiff was caused to sustain serious injuries suffered injury in that his reputation was damaged; his good name was damaged; he has suffered shame, depression, embarrassment, mental strain, mental anguish, mental distress, and humiliation; and as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for medical care; and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

118. Plaintiff hereby demands compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

**SEVENTH CAUSE OF ACTION:
DEFAMATION**

119. Plaintiff repeats and re-alleges all the allegations contained in all preceding paragraphs of this complaint with full force and effect as though set forth at length herein.

120. Defendants made numerous false statements regarding plaintiff that caused special harm, and which constituted defamation *per se*.

121. Defendants made numerous false statements in public regarding plaintiff that caused special harm, and which constituted defamation *per se*.

122. These wrongful acts and illegitimate purposes caused plaintiff to suffer severe and permanent harms and special damages.

123. As a result of the foregoing, plaintiff was caused to sustain serious injuries suffered injury in that his reputation was damaged; his good name was damaged; he has suffered shame, depression, embarrassment, mental strain, mental anguish, mental distress, and humiliation; and as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for medical care; and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

124. Plaintiff hereby demands compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

**EIGHTH CAUSE OF ACTION:
PRIMA FACIE TORT**

125. Plaintiff repeats and re-alleges all the allegations contained in all preceding paragraphs of this complaint with full force and effect as though set forth at length herein.

126. Defendants acts and omissions constitute intentional infliction of harm.

127. Defendants acts and omissions caused plaintiff causing special damages.

128. Defendants acts and omissions were without excuse or justification.

129. To the extent that defendants' acts and omissions might be deemed, in part or in whole, to be otherwise lawful by the court or fact finder, they constitute *prima facie* tort.

130. These wrongful acts and illegitimate purposes caused plaintiff to suffer severe and permanent harms and special damages.

131. Defendants acts were for illegitimate purpose to obtain a collateral illegitimate gain and constitute *prima facie* tort.

132. As a result of the foregoing, plaintiff was caused to sustain serious injuries suffered injury in that his reputation was damaged; his good name was damaged; he has suffered shame, depression, embarrassment, mental strain, mental anguish, mental distress, and humiliation; and as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for medical care; and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

133. Plaintiff hereby demands compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

**NINTH CAUSE OF ACTION:
NEGLIGENCE**

134. Plaintiff repeats and re-alleges all the allegations contained in all preceding paragraphs of this complaint with full force and effect as though set forth at length herein.

135. Defendants had a duty of reasonable care to plaintiff.

136. The above acts and omission were negligent and unreasonable, causing plaintiff to suffer severe and permanent injury.

137. As a result of defendants' negligence, plaintiff suffered severe and permanent harms and special damages.

138. As a result of the foregoing, plaintiff was caused to sustain serious injuries suffered injury in that his reputation was damaged; his good name was damaged; he has suffered shame, depression, embarrassment, mental strain, mental anguish, mental distress, and humiliation; and as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for medical care; and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

139. Plaintiff hereby demands compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

**TENTH CAUSE OF ACTION:
FALSE ARREST**

140. Plaintiff repeats and re-alleges all the allegations contained in all preceding paragraphs of this complaint with full force and effect as though set forth at length herein.

141. The above state acts and omissions constitute false arrest under the laws of the State of New York.

142. As a result of the foregoing, plaintiff was caused to sustain serious and permanent injury.

143. As a result of the foregoing, plaintiff was caused to sustain serious injuries suffered injury in that his reputation was damaged; his good name was damaged; he has suffered shame, depression, embarrassment, mental strain, mental anguish, mental distress, and humiliation; and as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for

medical care; and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

144. Plaintiff hereby demands compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

**ELEVENTH CAUSE OF ACTION:
MALICIOUS PROSECUTION**

145. Plaintiff repeats and re-alleges all the allegations contained in all preceding paragraphs of this complaint with full force and effect as though set forth at length herein.

146. The above state acts and omissions constitute malicious prosecution under the laws of the State of New York.

147. As a result of the foregoing, plaintiff was caused to sustain serious and permanent injury.

148. As a result of the foregoing, plaintiff was caused to sustain serious injuries suffered injury in that his reputation was damaged; his good name was damaged; he has suffered shame, depression, embarrassment, mental strain, mental anguish, mental distress, and humiliation; and as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for medical care; and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

149. Plaintiff hereby demands compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

**TWELFTH CAUSE OF ACTION:
CIVIL CONSPIRACY**

150. Plaintiff repeats and re-alleges all the allegations contained in all preceding paragraphs of this complaint with full force and effect as though set forth at length herein.

151. There was an agreement between defendants to commit wrongful acts.

152. The defendants engaged in one or more overt acts furtherance of the agreement.

153. Defendants intentionally participated in the furtherance of a plan or purpose.

154. Plaintiff suffered resulting damage and injury.

155. The foregoing acts and omissions constitute civil conspiracy.

156. As a result of the foregoing, plaintiff was caused to sustain serious and permanent injury.

157. As a result of the foregoing, plaintiff was caused to sustain serious injuries suffered injury in that his reputation was damaged; his good name was damaged; he has suffered shame, depression, embarrassment, mental strain, mental anguish, mental distress, and humiliation; and as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for medical care; and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

158. Plaintiff hereby demands compensatory and punitive damages against defendants in an amount to be proven at trial that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction against each of the defendants, individually and severally.

WHEREFORE, plaintiff, SHAMAH SHARIZE, demands judgment against the defendants, jointly and severally, in an amount greater than the jurisdictional limits of all lower courts which would otherwise have jurisdiction., together with attorneys' fees, the costs and disbursements of this action.

Dated: New York, NY
November 12, 2020

A handwritten signature in dark ink, appearing to read 'Laura Gentile', with a stylized flourish at the end.

LAURA GENTILE

GENTILE & ASSOCIATES

Attorneys for Plaintiff

401 Park Avenue South – 10th Floor

New York, NY 10016

Tel: (212) 689-6009

laura@gentilelaw.com

VERIFICATION

LAURA GENTILE, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of GENTILE & ASSOCIATES, attorneys for plaintiff. I have read the foregoing Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make this verification because plaintiff is not currently in the county in which we maintain our offices.

DATED: New York, New York
November 12, 2020

A handwritten signature in dark ink, appearing to read "Laura Gentile", written in a cursive style.

LAURA GENTILE